

Chapter 230 Bicycle Parking Space Regulations

230.5 General Regulations Applying to All Bicycle Parking Spaces

230.5.1 General

230.5.1.10 Interpretation

(1) Application of This Section

The regulations in Section 230.5 apply to all **bicycle parking spaces**.

(2) Rounding of Bicycle Parking Space Requirements

If the calculation of the minimum **bicycle parking spaces** for all uses results in a fraction of a **bicycle parking space** being required, the number of required **bicycle parking spaces** must be rounded up to the next whole number.

(3) Meaning of Long-Term Bicycle Parking and Short-Term Bicycle Parking

The terms "long-term" **bicycle parking space** and "short-term" **bicycle parking space** have the following meaning:

- (A) "long-term" **bicycle parking spaces** are **bicycle parking spaces** for use by the occupants or tenants of a **building**; and
- (B) "short-term" **bicycle parking spaces** are **bicycle parking spaces** for use by visitors to a **building**.

(4) Bicycle Parking Space Dimensions

A **bicycle parking space** must comply with the following:

- (A) the minimum dimension of a **bicycle parking space** is:
 - (i) minimum length of 1.8 metres;
 - (ii) minimum width of 0.6 metres; and
 - (iii) minimum vertical clearance from the ground of 1.9 metres; and
- (B) the minimum dimension of a **bicycle parking space** if placed in a vertical position on a wall, **structure** or mechanical device is:
 - (i) minimum length or vertical clearance of 1.9 metres;
 - (ii) minimum width of 0.6 metres; and
 - (iii) minimum horizontal clearance from the wall of 1.2 metres; and
- (C) if a **stacked bicycle parking space** is provided, the minimum vertical clearance for each **bicycle parking space** is 1.2 metres.

(5) Vertical Clearance of a Bicycle Parking Area

An area used to provide **bicycle parking spaces** must have a minimum vertical clearance of:

- (A) 2.4 metres if it is a **stacked bicycle parking space**; and
- (B) 1.9 metres in all other cases.

(6) Long-Term Bicycle Parking Space Locational Requirement

"Long-term" **bicycle parking spaces** must be located in a **building**.

(7) Change and Shower Facilities

If a **building** has uses, other than **dwelling units**, for which a "long-term" **bicycle parking space** is required, shower and change facilities must be provided for each gender at the following rate:

- (A) none if less than 5 required "long-term" **bicycle parking spaces**;
- (B) 1 for 5 to 60 required "long-term" **bicycle parking spaces**;
- (C) 2 for 61 to 120 required "long-term" **bicycle parking spaces**;
- (D) 3 for 121 to 180 required "long-term" **bicycle parking spaces**; and

(E) 4 for more than 180 required "long-term" **bicycle parking spaces**.

(8) Bicycle Parking Space Located with Use

A **bicycle parking space** must be on the same **lot** as the use for which it is required.

(9) Long Term Bicycle Parking Space Location

If a **lot** is located in:

(A) the Commercial Zone category, Commercial Residential Zone category, Commercial Residential Employment Zone category, Institutional Zone category or Employment Zone category then a required "long-term" **bicycle parking space** for uses other than **dwelling units** may be located:

(i) on the first **storey** of the **building**;

(ii) on the second **storey** of the **building**;

(iii) on levels of the **building** below-ground commencing with the first level below-ground and moving down, in one level increments when at least 50% of the area of that level is occupied by **bicycle parking spaces**, until all required **bicycle parking spaces** have been provided; and

(B) the Residential zone category, Apartment Zone Category; Commercial Residential Zone category, Commercial Residential Employment Zone category, then a required "long-term" **bicycle parking space** for a **dwelling unit** in an **apartment building** or **mixed-use building** may be located:

(i) on the first **storey** of the **building**;

(ii) on the second **storey** of the **building**;

(iii) on levels of the **building** below-ground commencing with the first level below-ground and moving down, in one level increments when at least 50% of the area of that level is occupied by **bicycle parking spaces**, until all required **bicycle parking spaces** have been provided; and

(10) Stacked Bicycle Parking Spaces

A "long-term" **bicycle parking space** may be located in a **stacked bicycle parking space**.

(11) Bicycle Zones

Bicycle Zones in the City are:

(A) Bicycle Zone 1, is the area of the City bounded by the Humber River on the west, Lawrence Ave. on the north, Victoria Park Ave. on the east and Lake Ontario on the south; and

(B) Bicycle Zone 2, includes all areas of the City not included in Bicycle Zone 1.

(12) Bicycle Maintenance Facilities

If a **building** has uses for which 5 or more "long-term" **bicycle parking spaces** are required, **bicycle maintenance facilities** must be provided in the **building** with the following minimum dimensions:

(A) minimum length of 1.8 metres;

(B) minimum width of 2.6 metres; and

(C) minimum vertical clearance from the ground of 1.9 metres; [By-law: 839-2022]

230.5.10 Bicycle Parking Rates All Zones

230.5.10.1 General

(1) Bicycle Parking Space Rates

For a **building** or portion of a **building** constructed pursuant to a building permit issued more than three years after May 9, 2013, **bicycle parking spaces** must comply with Table 230.5.10.1(1).

Table 230.5.10.1(1)

Bicycle Parking Space Rates

<i>Bicycle Parking Space Rates</i>		
Use	Short-Term Bicycle Parking Spaces	Long-Term Bicycle Parking Spaces
Crisis Care Facility	(None)	the minimum number of long-term bicycle parking spaces to be provided is 2
Eating Establishment	the minimum number of short-term bicycle parking spaces to be provided: (A) in Bicycle Zone 1 is 3 plus 0.3 bicycle parking spaces for each 100 square metres of interior floor area used for an eating establishment ; and (B) in Bicycle Zone 2 is 3 plus 0.25 bicycle parking spaces for each 100 square metres of interior floor area used for an eating establishment .	the minimum number of long-term bicycle parking spaces to be provided: (A) in Bicycle Zone 1 is 0.2 for each 100 square metres of interior floor area used for an eating establishment ; and (B) in Bicycle Zone 2 is 0.13 for each 100 square metres of interior floor area used for an eating establishment .
Education Use	the minimum number of short-term bicycle parking spaces to be provided: (A) in Bicycle Zone 1 is 3 plus 0.1 bicycle parking spaces for each 100 square metres of interior floor area used for a education use ; and (B) in Bicycle Zone 2 is 3 plus 0.06 bicycle parking spaces for each 100 square metres of interior floor area used for a education use .	the minimum number of long-term bicycle parking spaces to be provided: (A) in Bicycle Zone 1 is 0.1 for each 100 square metres of interior floor area used for an education use ; and (B) in Bicycle Zone 2 is 0.06 for each 100 square metres of interior floor area used for an education use .
Hospital	the minimum number of short-term bicycle parking spaces is: (A) in Bicycle Zone 1 is 3 plus 0.1 bicycle parking spaces for each 100 square metres of interior floor area used for a hospital ; and (B) in Bicycle Zone 2 is 3 plus 0.06 bicycle parking spaces for each 100 square metres of interior floor area used for a hospital .	the minimum number of long-term bicycle parking spaces to be provided: (A) in Bicycle Zone 1 is 0.1 for each 100 square metres of interior floor area used for a hospital ; and (B) in Bicycle Zone 2 is 0.06 for each 100 square metres of interior floor area used for a hospital .
Medical Office	the minimum number of short-term bicycle parking spaces to be provided: (A) in Bicycle Zone 1 is 3 plus 0.15 bicycle parking spaces for each 100 square metres of interior floor area used for a medical office; and (B) in Bicycle Zone 2 is 3 plus 0.1 bicycle parking spaces for each 100 square metres of interior floor area used for a medical office.	the minimum number of long-term bicycle parking spaces to be provided: (A) in Bicycle Zone 1 is 0.15 for each 100 square metres of interior floor area used for a medical office; and (B) in Bicycle Zone 2 is 0.1 for each 100 square metres of interior floor area used for a medical office.
Municipal Shelter	(None)	the minimum number of long-term bicycle parking spaces to be provided is 2.
Office	the minimum number of short-term bicycle parking spaces to be provided: (A) in Bicycle Zone 1 is 3 plus 0.2 bicycle parking spaces for each 100 square metres of interior floor area used for an office, other than a medical office; and (B) in Bicycle Zone 2 is 3 plus 0.15 bicycle parking spaces for each 100 square metres of interior floor area used for an office, other than a medical office.	the minimum number of long-term bicycle parking spaces to be provided: (A) in Bicycle Zone 1 is 0.2 for each 100 square metres of interior floor area used for an office, other than a medical office; and (B) in Bicycle Zone 2 is 0.13 for each 100 square metres of interior floor area used for an office, other than a medical office.
Personal Service Shop	the minimum number of short-term bicycle parking spaces to be provided: (A) in Bicycle Zone 1 is 3 plus 0.3 bicycle parking spaces for each 100 square metres of interior floor area used for a personal service shop ; and (B) in Bicycle Zone 2 is 3 plus 0.25 bicycle parking spaces for each 100 square metres of interior floor area used for a personal service shop .	the minimum number of long-term bicycle parking spaces to be provided: (A) in Bicycle Zone 1 is 0.2 for each 100 square metres of interior floor area used for a personal service shop ; and (B) in Bicycle Zone 2 is 0.13 for each 100 square metres of interior floor area used for a personal service shop .
Post-Secondary School	the minimum number of short-term bicycle parking spaces :	the minimum number of long-term bicycle parking spaces to be provided:

	(A) in Bicycle Zone 1 is 3 plus 0.3 bicycle parking spaces for each 100 square metres of interior floor area used for post-secondary school offices and classrooms; and (B) in Bicycle Zone 2 is 3 plus 0.18 bicycle parking spaces for each 100 square metres of interior floor area used for post-secondary school offices and classrooms. [By-law: 559-2014]	(A) in Bicycle Zone 1 is 1.0 for each 100 square metres of interior floor area used for post-secondary school offices and classrooms; and (B) in Bicycle Zone 2 is 0.6 for each 100 square metres of interior floor area used for post-secondary school offices and classrooms. [By-law 559-2014]
Private School	the minimum number of short-term bicycle parking spaces to be provided: (A) in Bicycle Zone 1 is 3 plus 0.1 bicycle parking spaces for each 100 square metres of interior floor area used for a public school or private school ; and (B) in Bicycle Zone 2 is 3 plus 0.06 bicycle parking spaces for each 100 square metres of interior floor area used for a public school or private school .	the minimum number of long-term bicycle parking spaces to be provided: (A) in Bicycle Zone 1 is 0.1 for each 100 square metres of interior floor area used for a public school or private school ; and (B) in Bicycle Zone 2 is 0.06 for each 100 square metres of interior floor area used for a public school or private school .
Public School	the minimum number of short-term bicycle parking spaces to be provided: (A) in Bicycle Zone 1 is 3 plus 0.1 bicycle parking spaces for each 100 square metres of interior floor area used for a public school or private school ; and (B) in Bicycle Zone 2 is 3 plus 0.06 bicycle parking spaces for each 100 square metres of interior floor area used for a public school or private school .	the minimum number of long-term bicycle parking spaces to be provided: (A) in Bicycle Zone 1 is 0.1 for each 100 square metres of interior floor area used for a public school or private school ; and (B) in Bicycle Zone 2 is 0.06 for each 100 square metres of interior floor area used for a public school or private school .
Retail Store	the minimum number of short-term bicycle parking spaces to be provided: (A) in Bicycle Zone 1 is 3 plus 0.3 bicycle parking spaces for each 100 square metres of interior floor area used for a retail store ; and (B) in Bicycle Zone 2 is 3 plus 0.25 bicycle parking spaces for each 100 square metres of interior floor area used for a retail store .	the minimum number of long-term bicycle parking spaces to be provided: (A) in Bicycle Zone 1 is 0.2 for each 100 square metres of interior floor area used for a retail store ; and (B) in Bicycle Zone 2 is 0.13 for each 100 square metres of interior floor area used for a retail store .

(3) Use With Interior Floor Area of 2000 Square Metres or Less

Despite the **bicycle parking space** rates set out in regulations 230.5.10.1(1) and 230.5.10.1(5) and (6), if a **bicycle parking space** is required for uses on a **lot**, other than a **dwelling unit**, and the total **interior floor area** of all such uses on the **lot** is 2000 square metres or less, then no **bicycle parking space** is required.

(4) Multiple uses on a lot

If Table 230.5 10.1(1) Bicycle Parking Space Rates, requires a **bicycle parking space** for one or more uses on a **lot**, the total number of **bicycle parking spaces** required is equal to the cumulative total of all **bicycle parking spaces** required for each use on the **lot**.

(5) Bicycle Parking Space Requirements for Dwelling Units

Bicycle parking space requirements for **dwelling units** in an **apartment building** or a **mixed use building** are:

- (A) in Bicycle Zone 1, a minimum of 1.1 **bicycle parking spaces** for each **dwelling unit**, allocated as 0.9 "long-term" **bicycle parking space** per **dwelling unit** and 0.2 "short-term" **bicycle parking space** per **dwelling unit**; and [By-law: 839-2022]
- (B) in Bicycle Zone 2, a minimum of 0.75 **bicycle parking spaces** for each **dwelling unit**, allocated as 0.68 "long-term" **bicycle parking space** per **dwelling unit** and 0.07 "short-term" **bicycle parking space** per **dwelling unit**.

(6) Interior Floor Area Exclusions for Bicycle Parking Space Calculations

To calculate **bicycle parking space** requirements for other than **dwelling units**, the **interior floor area** of a **building** is reduced by the area in the **building** used for:

- (A) parking, loading and bicycle parking below-ground;
- (B) required **loading spaces** at the ground level and required **bicycle parking spaces** at or above-ground;

- (C) storage rooms, washrooms, electrical, utility, mechanical and ventilation rooms in the **basement**;
- (D) shower and change facilities and **bicycle maintenance facilities** required by this By-law for required **bicycle parking spaces**; [By-law: 839-2022]
- (E) elevator shafts;
- (F) mechanical penthouse; or
- (G) exit stairwells in the **building**. [By-law: 1774-2019]

230.5.10.11 Bicycle Parking Rate Exemptions

(1) Lawfully Existing Building - Bicycle Parking Space Not Required

Article 230.5.10 does not apply to a **lawfully existing building** that was not required to provide a **bicycle parking space**.

(2) Lawfully Existing Building - Bicycle Parking Space Requirement

If the **lawful** number of **bicycle parking spaces** for a **lawfully existing building** that was required to provide **bicycle parking spaces** is less than the required number of **bicycle parking spaces**, that **lawful** number of **bicycle parking spaces** is the minimum number of **bicycle parking spaces** for that **lawfully existing building**.

(3) Lawfully Existing Building - Shower and Change Facilities

If a **lawfully existing building** has a **lawful** number of shower and change facilities that is less than the required number of shower and change facilities, that **lawful** number of shower and change facilities is the minimum number of shower and change facilities for that **lawfully existing building**.

(4) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** referred to in regulations 230.5.10.11(1), 230.5.10.11(2) and 230.5.10.11(3) must comply with:

- (A) the **bicycle parking space** requirement, or be authorized by a Section 45 Planning Act minor variance; and
- (B) the shower and change facility requirements or be authorized by a Section 45 Planning Act minor variance.
- (C) the **bicycle maintenance facility** requirements or be authorized by a Section 45 Planning Act minor variance. [By-law: 839-2022]

(5) Lawfully Existing Building - Change of Use

If there is a change of use in a **lawfully existing building** referred to in regulations 230.5.10.11(1), 230.5.10.11(2) and 230.5.10.11(3):

- (A) any additional required **bicycle parking spaces** must comply with Article 230.5.10 or be authorized by a Section 45 Planning Act minor variance;
- (B) the number of **lawful bicycle parking spaces** for that **lawfully existing building** may not be reduced; and
- (C) no additional shower and change facility is required.

(6) Lawfully Existing Building - Bicycle Parking Space Exemption For Size, Type And Location

If a **lawfully existing building** referred to in regulations 230.5.10.11(2) and 230.5.10.11(3) was required to provide **bicycle parking spaces**, those **lawful bicycle parking spaces** are not required to comply with regulations 230.5.1.10(4) to (6) and 230.5.1.10(9) and regulation 230.5.1.10(3) does not apply.

(7) Lawfully Existing Building – Bicycle Maintenance Facility Exemption

Regulation 230.5.1.10(12) does not apply to a **lawfully existing building** that was not required to provide **bicycle maintenance facilities**. [By-law: 839-2022]

(8) Definition of Lawful

For the purposes of Clause 230.5.10.11, the words **lawful** and **lawfully** highlighted in bold type, in addition to the definitions provided in Zoning By-law 569-2013, Chapter 800 Definitions, includes:

- (A) **buildings, structures** or uses authorized or permitted on or before July 22, 2022; and

- (B) **buildings, structures** or uses authorized after July 22, 2022 in accordance with Clauses 230.90.15.1, 230.90.15.2, 230.90.15.3 and 230.90.15.4. [By-law: 839-2022]

230.5.10.20 Reductions for Bicycle Parking Spaces

(1) Payment-in-Lieu of Bicycle Parking

The number of "short-term" **bicycle parking spaces** required by Regulation 230.5.10.1(5)(A) may be reduced, subject to the following:

- (A) the number of "short-term" **bicycle parking spaces** reduced is not more than half the amount required by Regulation 230.5.10.1(5)(A), rounded down to the nearest whole number;
- (B) for each "short-term" **bicycle parking space** required by Regulation 230.5.10.1(5)(A) to be reduced, the owner or occupant must provide a payment in-lieu to the City; and
- (C) the owner or occupant must enter into an agreement with the City pursuant to Section 40 of the Planning Act. [By-law: 839-2022]

230.10 Bicycle Parking Regulations in the Residential Zone Category

230.10.1 General

230.10.1.20 Standards

(1) Bicycle Parking Space - Storage Location

In the Residential Zone category, a "long-term" **bicycle parking space** for a **dwelling unit** in an **apartment building** may not be:

- (A) in a **dwelling unit**;
- (B) on a balcony; or
- (C) in a storage locker.

(2) Location Relative to Building Entrance

If a **lot** with an **apartment building** is in the Residential Zone category, a "short-term" **bicycle parking space** may be no more than 30 metres from a pedestrian entrance to the **apartment building** on the **lot**.

230.20 Bicycle Parking Regulations in the Residential Apartment Zone Category

230.20.1 General

230.20.1.20 Standards

(1) Bicycle Parking Space - Storage Location

In the Residential Apartment Zone category, a "long-term" **bicycle parking space** for a **dwelling unit** in an **apartment building** may not be:

- (A) in a **dwelling unit**;
- (B) on a balcony; or
- (C) in a storage locker.

(2) Location Relative to Building Entrance

In the Residential Apartment Zone category, a "short-term" **bicycle parking space** may be no more than 30 metres from a pedestrian entrance to the **apartment building** on the **lot**.

230.30 Bicycle Parking Regulations in the Commercial Zone Category

230.30.1 General

230.30.1.20 Standards

(1) Bicycle Parking - Location CR Zones

In the Commercial Zone category, a **bicycle parking space** for a **dwelling unit** may not be:

- (A) in a **dwelling unit**;
- (B) on a balcony;
- (C) in a storage locker; or
- (D) in an area used for commercial space. [By-law: 451-2022]

(2) Location Relative to Building Entrance

In the Commercial Zone category, a "short-term" **bicycle parking space** may be no more than 30 metres from a pedestrian entrance to the **building** on the **lot**.

230.40 Bicycle Parking Regulations in the Commercial - Residential Zone Category

230.40.1 General

230.40.1.20 Standards

(1) Bicycle Parking - Location CR Zones

In the Commercial Residential Zone category, a **bicycle parking space** for a **dwelling unit** may not be:

- (A) in a **dwelling unit**;
- (B) on a balcony;
- (C) in a storage locker; or
- (D) in an area used for commercial space. [By-law: 451-2022]

(2) Location Relative to Building Entrance

In the Commercial Residential Zone category, a "short-term" **bicycle parking space** may be no more than 30 metres from a pedestrian entrance to the **building** on the **lot**.

230.50 Bicycle Parking Regulations in the Commercial Residential Employment Zone Category

230.50.1 General

230.50.1.20 Standards

(1) Bicycle Parking - Location CRE Zone Category

in the Commercial Residential Employment Zone category, a **bicycle parking space** for a **dwelling unit** must not be:

- (A) in a **dwelling unit**;
- (B) on a balcony;
- (C) in a storage locker; or
- (D) in an area used for commercial space. [By-law: 451-2022]

(2) Location Relative to Building Entrance

If a **lot** in the Commercial Residential Employment Zone category has an **apartment building** or **mixed use building**, a "short-term" **bicycle parking space** may be no more than 30 metres from a pedestrian entrance to the **building** on the **lot**. [By-law: 451-2022]

230.60 Bicycle Parking Regulations in the Employment Zone Category

230.60.1 General

230.60.1.20 Standards

(1) Location Relative to Building Entrance

In the Employment Zone category, a "short-term" **bicycle parking space** may be no more than 30 metres from a pedestrian entrance to the **building** on the **lot**. [By-law: 451-2022]

230.80 Bicycle Parking Regulations in the Institutional Zone Category

230.80.1 General

230.80.1.20 Standards

(1) Bicycle Parking Space - Storage Location

In the Institutional Zone category, a "long-term" **bicycle parking space** may not be located:

- (A) in a **dwelling unit** or **bed-sitting room**;
- (B) on a balcony; or
- (C) in a storage locker.

(2) Location Relative to Building Entrance

In the Institutional Zone category, a "short-term" **bicycle parking space** may be no more than 30 metres from a pedestrian entrance to the **building** on the lot.

230.90 Compliance with Bicycle Parking Regulations

230.90.1 General

(1) Buildings Exempt from Complying

None of the provisions of 10.5.40.40(4)(D), 15.5.40.40(1)(D), 30.5.40.40(4)(D), 40.5.40.40(1)(D), 40.5.40.40(3)(D), 40.5.40.40(5)(D), 50.5.40.40(1)(D), 50.5.40.40(3)(D), 50.5.40.40(5)(D), 60.5.40.40(1)(E), 60.5.90.1(1)(E), 80.5.40.40(1)(D), 230.5.10.1(5)(A), 230.5.10.1(6)(D), 230.5.1.10(12) and 230.5.10.20 apply to prevent the erection or use of a **lawfully existing building or structure**. [By-law: 839-2022]

(2) Definition of Lawful

For the purposes of Regulation 230.90.1(1), the words **lawful** and **lawfully** highlighted in bold type, in addition to the definitions provided in Zoning By-law 569-2013, Chapter 800 Definitions, includes existing or authorized on or before July 22, 2022. [By-law: 839-2022]

230.90.15 Transition: Parking space Regulations

(1) Parking Space Regulations

An application submitted before July 22, 2022 that is eligible to proceed under Clauses 230.90.15.1, 230.90.15.2, 230.90.15.3 and 230.90.15.4 must comply with the requirements of Clauses 970.30.15.5, 970.30.15.10, 970.30.15.15, 970.30.15.30, 970.30.15.40, 970.30.15.50, 970.30.15.60 and 970.30.15.80. [By-law: 839-2022]

230.90.15.1 Transition: Building Permit Applications

(1) Building Permit Applications

None of the provisions of 10.5.40.40(4)(D), 15.5.40.40(1)(D), 30.5.40.40(4)(D), 40.5.40.40(1)(D), 40.5.40.40(3)(D), 40.5.40.40(5)(D), 50.5.40.40(1)(D), 50.5.40.40(3)(D), 50.5.40.40(5)(D), 60.5.40.40(1)(E), 60.5.90.1(1)(E), 80.5.40.40(1)(D), 230.5.10.1(5)(A), 230.5.10.1(6)(D), 230.5.1.10(12) and 230.5.10.20 will prevent the erection or use of a **building or structure** for which an application for a building permit was filed on or prior to July 22, 2022, if the project in question complies, or the building permit application for the project is amended to comply, with the provisions of Clauses 970.30.15.5, 970.30.15.10, 970.30.15.15, 970.30.15.30, 970.30.15.40, 970.30.15.50, 970.30.15.60 and 970.30.15.80, and all finally approved minor variances. [By-law: 839-2022]

(2) Building Permit Applications

For the purposes of regulation 230.90.15.1(1), an "application for a building permit" means an application for a building permit that satisfies the requirements set out in Article I, Building Permits of Chapter 363, Building Construction and Demolition of the City of Toronto Municipal Code. [By-law: 839-2022]

230.90.15.2 Transition: Zoning By-law Amendment

(1) Zoning By-law Amendment

None of the provisions of 10.5.40.40(4)(D), 15.5.40.40(1)(D), 30.5.40.40(4)(D), 40.5.40.40(1)(D), 40.5.40.40(3)(D), 40.5.40.40(5)(D), 50.5.40.40(1)(D), 50.5.40.40(3)(D), 50.5.40.40(5)(D), 60.5.40.40(1)(E), 60.5.90.1(1)(E), 80.5.40.40(1)(D), 230.5.10.1(5)(A), 230.5.10.1(6)(D), 230.5.1.10(12) and 230.5.10.20 will prevent the erection or use of a **building or structure** for which a complete application for a zoning by-law amendment application was filed on or prior to July 22, 2022, if the project in question complies with the provisions of Clauses 970.30.15.5, 970.30.15.10, 970.30.15.15, 970.30.15.30, 970.30.15.40, 970.30.15.50, 970.30.15.60 and 970.30.15.80. [By-law: 839-2022]

(2) Zoning By-law Amendment

For the purposes of Regulation 230.90.15.2(1), a "complete application for a zoning bylaw amendment" means an application which satisfies the requirements set out in the City of Toronto Official Plan Policy 5.5.2. [By-law: 839-2022]

230.90.15.3 Transition: Minor Variance Applications

(1) Minor Variance Applications

None of the provisions of 10.5.40.40(4)(D), 15.5.40.40(1)(D), 30.5.40.40(4)(D), 40.5.40.40(1)(D), 40.5.40.40(3)(D), 40.5.40.40(5)(D), 50.5.40.40(1)(D), 50.5.40.40(3)(D), 50.5.40.40(5)(D), 60.5.40.40(1)(E), 60.5.90.1(1)(E), 80.5.40.40(1)(D), 230.5.10.1(5)(A), 230.5.10.1(6)(D), 230.5.1.10(12) and 230.5.10.20 will prevent the erection or use of a **building or structure**, for which:

- (A) A complete application for a minor variance under Section 45 of the Planning Act was filed on or prior to July 22, 2022; or
- (B) A complete application for a minor variance under Section 45 of the Planning Act was filed after July 22, 2022 in respect of a building permit referred to in Regulation 230.90.15.1(1). [By-law: 839-2022]

(2) Minor Variance Applications

For the purposes of Regulation 230.90.15.3(1), a "complete application for a minor variance" means an application which satisfies the requirements of Section 2 of Ontario Regulation 200/96 (Minor Variance Applications) under the Planning Act. [By-law: 839-2022]

(3) Minor Variance Applications

Where a project qualifies under Clause 230.90.15.3:

- (A) the minor variance may be granted in compliance with Section 45 of the Planning Act in the context of Clauses 970.30.15.5, 970.30.15.10, 970.30.15.15, 970.30.15.30, 970.30.15.40, 970.30.15.50, 970.30.15.60 and 970.30.15.80; and
- (B) a building permit for that project may be issued after final approval is received for the minor variance if the project in question complies, or the building permit application for the project is amended to comply, with the provisions of Clauses 970.30.15.5, 970.30.15.10, 970.30.15.15, 970.30.15.30, 970.30.15.40, 970.30.15.50, 970.30.15.60 and 970.30.15.80 and all finally approved minor variances. [By-law: 839-2022]

230.90.15.4 Transition: Site Plan Applications

(1) Site Plan Applications

None of the provisions of 10.5.40.40(4)(D), 15.5.40.40(1)(D), 30.5.40.40(4)(D), 40.5.40.40(1)(D), 40.5.40.40(3)(D), 40.5.40.40(5)(D), 50.5.40.40(1)(D), 50.5.40.40(3)(D), 50.5.40.40(5)(D), 60.5.40.40(1)(E), 60.5.90.1(1)(E), 80.5.40.40(1)(D), 230.5.10.1(5)(A), 230.5.10.1(6)(D), 230.5.1.10(12) and 230.5.10.20 will prevent the erection or use of a **building or structure** for a project for which a complete application for site plan approval was filed on or prior to July 22, 2022, if the project in question complies with the provisions of Clauses 970.30.15.5, 970.30.15.10, 970.30.15.15, 970.30.15.30, 970.30.15.40, 970.30.15.50, 970.30.15.60 and 970.30.15.80, and all finally approved minor variances. [By-law: 839-2022]

(2) Site Plan Applications

For the purposes of Regulation 230.90.15.4(1), a "complete application for site plan approval" means an application which satisfies the requirements set out in the City of Toronto Official Plan Policy 5.5.2. [By-law: 839-2022]

(3) Site Plan Applications

Where a project qualifies under Clause 230.90.15.4:

- (A) the Notice of Approval Conditions and final site plan approval may be granted if the project complies with Clause 970.30.15.5, all requirements of the Planning Act, and Section 114 of the City of Toronto Act, 2006, S.O. 2006, c.11 Schedule A; and
- (B) after a Notice of Approval Conditions or final site plan approval is received for a project that qualifies under Clause 230.90.15.4, a building permit for that project may be issued if the project in question complies, or the building permit application for the project is amended to comply, with the provisions of Clauses 970.30.15.5, 970.30.15.10, 970.30.15.15, 970.30.15.30, 970.30.15.40, 970.30.15.50, 970.30.15.60 and 970.30.15.80, the site plan approval, and all finally approved minor variances. [By-law: 839-2022]

